

No.	Case Number	Case Name	Type of Matter	Probate Notes
				4. A Proof of Publication is needed. (Prob. Code §8120.)
<u>The following matters are PRE-APPROVED and no appearance is necessary unless an objection is made:</u>				
3	20PR-0337	Estate of: William Wood	Motion Filed 10/13/2025 [DUE 5/8/26] Correct Clerical Error ATPT David Sine cont'd 2/24/25	APPROVED LIST: Based on the materials filed, it appears that Petitioner has filed a Motion under Code of Civil Procedure section 473 to correct an error in the Order filed August 25, 2025, due to his mistake, surprise or excusable neglect. Notice has been provided to the underlying beneficiaries of the estate beneficiary, the Wood Family Trust. The moving part is the Trustee of said Trust. In this matter, the Amended Petition and order of the Court did not request statutory fees for the personal representative, but instead clearly stated no fees were due to the personal representative. The attorney now indicates this was an error and that statutory fees for the personal representative were meant to be requested in full, with what appears to be a statutory fee to the attorney at an agreed-upon reduced fee of \$8,738.89. Absent Objection, it is recommended that the Court generally grant the Motion, but the remaining issue never determined on August 12, 2025 was the amount of statutory fee due. The Petitioner's filings leading up to the August 12, 2025 approval of the Petition for Final Distribution were inconsistent and confusing, as discussed at length in the ruling adopted that day. Despite this, the Petition was granted based, in part, on what the Court understood at the

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				<i>time to be a waiver of the statutory fee and a reduction in the attorney's statutory fee. These waivers made the need to calculate the statutory fee precisely moot under the circumstances. The Court is now left back where it started in August of 2025 by this Motion, in that it needs to determine the base value of the estate under Probate Code section 10800, subsection (b.) This section directs the Court to use the Inventory and Appraisal, plus gains, plus receipts, less losses to determine the base value. Nevertheless, due to said errors in assets tracking, as noted in the August 12, 2025 ruling, this is not a clear task.</i> <i>Based on the August 12, 2025 ruling, this Court found that the unverified asset-on-hand list attached to the January 30, 2025 Supplement and served on January 2, 2025 was the list of assets on hand to be adopted.. The Court also accepted the August 4, 2023 Inventory and Appraisal, although again, noting matched between it and the balance of the file. The Inventory had a date of death value of \$1,166,134.00. The January 30, 2025 Supplement reported only \$752,000 in starting assets (a difference from the I&A of \$414,134.00), \$216,271. 65 in receipts, \$10,982.02 in gains, and \$10,858.70 in losses. The assets on hand at the end of the account were only \$968,615.54. It is important to note that \$0.00 in distributions were listed, and disbursements were only \$209.75.</i> <i>Due to a huge discrepancy and unaccounted for assets of over \$400,000 between the Inventory and the final asset on</i>

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				<i>hand, using the Inventory and Appraisal value to calculate fees appears inappropriate and improper compensation. As such, it is recommended the Court use the already adopted ending balance of assets on hand of \$968,615.54 to calculate fees. This value contains the true starting balance, plus receipts, gains and losses, no distributions, and de minimis disbursements. This would result in a statutory fee of \$22,372.31. Although this is not perfectly in line with Probate Code section 10800 subsection (b), the Petitioner has failed to provide an adequate number for this Court to determine the fee. As such, the last uncontested value is recommended to be the base estate value. T</i> <i>Based on the above, a total statutory fee to the Petitioner is recommended, in the amount of \$22,372.31, based on the base estate value of the property on hand of \$968,615.50 as represented in the Supplement filed on January 30, 2025. The attorney's statutory fee is reduced, again by agreement of the parties, to the \$8,738.89 amount previously ordered. This is mentioned because the most recent filing states the statutory fee for the attorney should be zero, but it is assumed this again, is a typo or a miscategorization of the fee to be paid, which would still be a statutory fee, just reduced.</i>
5	22PR-0367	Estate of: VICTOR BACIGALUPI, Junior	Petition Filed 4/9/2025 - Final Distribution and Waiver of Accounting [DUE 5/19/26]; cont'd 9/16/25, 4/7/26	APPROVED LIST: The Second Amended Petition filed May 18, 2026 is recommended for approval.